

Calendar Lines #3- 4
Case Name Robert Hayter, II vs Bella Nguyen et al.
Case No. 24CV431877
Motion to Compel Response to Form Interrogatories (Line # 3) and Motion to Compel Responses to Request for Production of Documents (Line #4); Sanctions
I. <u>BACKGROUND</u> A. BRIEF FACTUAL SUMMARY This case stems from a slip-and-fall incident, wherein Plaintiff Robert Hayter, II filed a Complaint for a single cause of action for negligence on February 26, 2024. B. RELEVANT PROCEDURAL SUMMARY Before the Court is defendant Bella Nguyen’s (“Nguyen”) motion to compel Plaintiff Robert Hayter, II’s (“Hayter”) responses to request for form interrogatories (“FROG”), set one (Line # 3) and request for production of documents (“RFPD”), set one (Line # 4), and sanctions. On December 3, 2024, Defendant asserts to have served initial discovery including FROGs (Exhibit A, Declaration of Panto (“Panto Decl.”) and RFPD (Exhibit A, Panto Decl. ¶ 3), set one on Plaintiff’s then attorney Dayna Ellsworth via electronic mail service on that same day. Defense counsel met-and-conferred with Plaintiff’s counsel on December 13, 18, and 19, 2024 regarding a thirty day extension on discovery and then Plaintiff’s counsel noted an intention to withdraw as the attorney of record. On June 9, 2025, the plaintiff’s counsel filed a motion to withdraw that was granted by the Honorable Judge Deen on June 20, 2025. (Exhibit B, Panto Decl. ¶ 3-4). On August 8, 2025, Defense counsel sent a meet-and-confer letter to Plaintiff Hayter stating that no responses to discovery were received and provided a two week extension. (Exhibit C, Panto Decl. 5). The defendant did not receive responses. Defendant filed the motion to compel responses to FROGs and RFPD, set one and motion for sanctions on November 21, 2025. The motion was accompanied by a proof of service indicating mail service to Plaintiff Hayter. Both motions were set for hearing on July 30, 2026. On February 13, 2026, Defendants Amended Notice of Motion to Compel. However, per ex parte papers filed by the plaintiff seeking a continuance, the Honorable Mark Flannagan continued both motions to September 8, 2026 at 9:00 a.m. On July 29, 2026, Defendants filed a notice of non-opposition to the motions to compel. The motion remains unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026 based on the first motion setting and due on August 25, 2026 based on the continuance. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: Defendant Nguyen’s notice of motion to compel FROGS, set one and memorandum of points and authorities in support of motion to compel FROGs; Declaration of Arcolina Panto and attached Exhibits A-C (totaling 28 pages); Defendant Nguyen’s notice of motion to compel RFPD, set one and memorandum of points and authorities in support of motion to compel RFPD; Declaration of Arcolina Panto and attached Exhibits A-C (totaling 22 pages); Amended notice for motion to compel FROGs (totaling 4 pages);

Amended notice for motion to compel RFP (totaling 4 pages); notice of non-opposition (totaling 3 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence”). (*Id.* at 172; *see also*, *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co.*, *supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422).

Code of Civil Procedure section 2031.010(d) allows a party to “demand that any other party allow the party making the demand, or someone acting on the demanding party’s behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it.” Such a demand may be “without leave of court at any time that is 10 days after the service of the summons on, or appearance by, the party to whom the demand is directed, whichever occurs first.” (Code Civ. Proc., § 2031.020(b)). “The party making a demand for inspection, copying, testing, or sampling shall serve a copy of the demand on the party to whom it is directed and on all other parties who have appeared in the action.” (Code Civ. Proc., § 2031.040). If no response is served, the party making the demand may move for an order compelling response to the demand. (Code Civ. Proc., § 2031.300(b)).

III. ANALYSIS

Here, the defendants served the plaintiff with FROG and RFPD on December 3, 2024, Defendant asserts to have served initial discovery including FROGs and RFPD (Exhibit A, Panto Decl. ¶ 3). The initial discovery was served on Plaintiff’s then attorney of record, Dayna Ellsworth via electronic mail service on that same day. (Motion, p. 2). Attorneys for the parties met-and-conferred after the discovery was served and Plaintiff’s counsel sought a thirty day extension and notified the defense that counsel would seek a motion to withdraw. (*Id.*). On June 9, 2025, the

plaintiff's counsel filed a motion to withdraw that was granted by the Honorable Judge Deen on June 20, 2025. (Exhibit B, Panto Decl. ¶ 3-4).

After the withdrawal of plaintiff's counsel, defense counsel sent a meet-and-confer letter regarding the outstanding FROGS and RFPD, set one to Plaintiff Hayter directly on August 8, 2025, and unilaterally offered a two week extension. (Exhibit C, Panto Decl. ¶ 5). The defendant did not receive responses and filed these motions to compel responses to FROGS and RFPD, set one and motion for sanctions on November 21, 2025 that was initially set for hearing on July 30, 2026. Essentially over nineteen months have passed since initial discovery was served.

As of July 29, 2026, the motion was unopposed. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 22, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

However, per ex parte application on June 30, 2026, Plaintiff sought a continuance, which the Honorable Mark Flannagan reviewed and granted. Judge Flannagan continued both motions to September 8, 2026 at 9:00 a.m.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, "the court *shall* impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c)(emphasis added)).

The Defendants seek a total of \$410.00¹ in each of the motions to compel based on one hour of preparing and filing of the motion to compel FROG and another for the motion to compel RFPD, and anticipated 1 hour for each of the motions in review of opposition and to file reply briefs. The hourly rate requested is \$175.00. (Panto Decl. ¶ 7). The Defendant seeks \$60 for each of the two motions for filing fees. (*Id.*).

The Court notes that no opposition papers were filed, thus no time required for review of an opposition or prepare a reply brief. The Court will award the requested one hour for preparation and filing of each motion at the hourly rate of \$175.00 as well as the \$60.00 in costs for filing each of the two motions. Thus, the sanctions is awarded in the total amount of \$470.00 (one hour of time for the motion to compel FROGS and one hour of time for the motion to compel RFPD at the hourly rate of \$175.00 and \$60.00 in cost for the motion to compel FROGS and \$60.00 in cost for the motion to compel RFPD).

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel discovery for FROGS and RFPD, set one. Plaintiff is ORDERED to provide verified code-compliant responses within twenty (20) days of this Order.

The Court GRANTS the motion for sanctions in the amount of \$470.00. Plaintiff is to pay the defendant this amount within twenty (20) days of this Order. The Court will prepare the formal Order.

//

¹ In Defendant's motion to compel FROGS, set one. Defense counsel seeks \$585.00 in sanctions on p. 2 of the motion, but seeks \$410.00 in sanctions on p. 6 and 8. Based on the hourly rate and hours provided, the Court will consider the \$410.00 the correct amount sought by the defendant.

Calendar Line # 5
Case Name Ian Anderson vs Wells Fargo Bank
Case No. 24CV448600
Petition to Compel Arbitration I. <u>BACKGROUND</u> Plaintiff Ian Anderson (“Plaintiff”) brings this action for unlawful debt collection practices against Defendant Wells Fargo, Bank, N.A. Plaintiff alleges Defendant began a campaign of phone calls to collect payments due on his account by repeatedly calling him daily and multiple times a day. (Complaint at ¶ 8). “Plaintiff estimates that he received over one hundred phone calls from Defendant in an attempt to collect on the Debt.” (<i>Ibid.</i>). Plaintiff alleges two causes of action for (1) violation of the California Rosenthal Fair Debt Collection Practice Act (“Rosenthal Act”); and (2) invasion of privacy; intrusion into private affairs. Defendant now moves to arbitrate these claims based on the Arbitration Agreement contained in the Consumer Credit Card Customer Agreement (“the Agreement”). Having reviewed the Agreement, the Court will grant the motion and stay this action. II. <u>LEGAL STANDARD</u> Defendant maintains the Federal Arbitration Act (“FAA”) governs the Agreement. The Agreement provides: “You and the Bank (the ‘Parties’) agree that in this relationship: (1) The Parties are participating in transactions involving interstate commerce; and (2) This Arbitration Agreement and any resulting arbitration are governed by the provisions of the Federal Arbitration Act (Title 9 of the United States Code).” (Declaration of Melissa N. Mickael [“Mickael Decl.”], Ex. C at p. 18). Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (<i>Chiron Corp. v. Ortho Diagnostic Systems, Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130). To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (<i>Davis v. Nordstrom, Inc.</i> (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also <i>Ingle v. Circuit City Stores, Inc.</i> (9th Cir. 2003) 328 F.3d 1165, 1170). III. <u>ANALYSIS</u> A. THERE IS A VALID AGREEMENT TO ARBITRATE A valid agreement to arbitrate exists between the parties. “[T]he moving party bears the burden of producing ‘prima facie evidence of an agreement to arbitrate the controversy.’ The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165-166 [internal citations and quotations omitted]). Here, Defendant has attached a copy of the Agreement to its motion. (Mickael Decl., Exs. A-C.) The Agreement provides: “By either signing, using or accepting the plastic card(s) issued to you by us (your ‘Card[s]’), you accept the terms and conditions of this Agreement.” (<i>Id.</i>, Ex. A at § 2). The Agreement was updated over the years. (<i>Id.</i> at ¶ 9). Each time the Agreement was updated, a copy was provided to Plaintiff. (<i>Ibid.</i>). Plaintiff does not dispute that he continued to use the credit card account through June 29, 2023. (Mickael Decl. at ¶ 11). An updated Agreement was sent to Plaintiff as recent as August 2024 and remains in effect today. (<i>Id.</i> at ¶ 12). Each version of the Agreement contains a similar if not identical arbitration clause. (<i>Id.</i>, Exs. A-C). Thus, Plaintiff’s use of the card as dictated by section 2 of the Agreement demonstrates assent to be bound by the Agreement, including its arbitration provision. Therefore, a valid agreement to arbitrate exists between the parties.